

“Asset Replacement Percentage” means, as determined by the Designated Transaction Representative in its sole discretion, on any date of calculation, a fraction (expressed as a percentage) where the numerator is the outstanding principal balance of the Floating Rate Obligations being indexed to a reference rate identified in the definition of “Benchmark Replacement Rate” as a potential replacement for the Benchmark Rate and the denominator is the outstanding principal balance of all Floating Rate Obligations as of such calculation date.

“Bank” means U.S. Bank Trust Company, National Association in its individual capacity and not as Trustee, or any successor thereto.

“Bankruptcy Code” means the federal Bankruptcy Code, Title 11 of the United States Code, as amended from time to time.

“Board of Directors” means with respect to the Issuer, the directors duly appointed by either (i) the shareholders of the general partner of the Issuer or such Issuer Subsidiary, respectively, acting in its capacity as general partner of such entity or (ii) the board of directors of the general partner of the Issuer acting in its capacity as general partner of the General Partner pursuant to the Memorandum and Articles of Association of the General Partner.

“Benchmark Rate” means (i) with respect to any Floating Rate Obligation, the applicable benchmark rate (which may be a SOFR setting) currently in effect for such Floating Rate Obligation and determined in accordance with the related Underlying Instruments, and (ii) with respect to any Floating Rate Notes or for all other purposes, initially, the three-month Term SOFR Rate; *provided* that following the occurrence of a Benchmark Transition Event or a DTR Proposed Amendment, the “Benchmark Rate” in connection with this clause (ii) shall mean the applicable Benchmark Replacement Rate adopted in connection with such Benchmark Transition Event or DTR Proposed Rate adopted pursuant to such DTR Proposed Amendment, as applicable; *provided* that, if at any time following the adoption of a Benchmark Replacement Rate or DTR Proposed Rate, such rate determined in accordance with the Indenture would be a rate less than zero, then such rate shall be deemed to be zero for all purposes under the Indenture.

Notwithstanding anything in this Offering Circular to the contrary, if at any time while any Floating Rate Notes are Outstanding, a Benchmark Transition Event and its related Benchmark Replacement Date have occurred with respect to the Benchmark Rate, then the Designated Transaction Representative shall provide notice of such event to the Issuer, the Calculation Agent and the Trustee (who shall promptly provide notice thereof to the Holders of the Notes) and shall cause the Benchmark Rate to be replaced with the Benchmark Replacement Rate as proposed by the Designated Transaction Representative in connection with such Benchmark Transition Event prior to the later of (x) 30 days and (y) the next Interest Determination Date.

From and after the first Interest Accrual Period to begin after the adoption of a Benchmark Replacement Rate or the execution and effectiveness of a DTR Proposed Amendment: (i) the then-current Benchmark Rate with respect to the Floating Rate Notes will be replaced by the Benchmark Replacement Rate or DTR Proposed Rate, as applicable, as specified therein and (ii) if the Benchmark Replacement Rate or DTR Proposed Rate selected is the same benchmark rate currently in effect for determining interest on a Floating Rate Obligation, such Benchmark Replacement Rate or DTR Proposed Rate, as applicable, shall be used in determining the Aggregate Funded Spread in accordance with the definition thereof.

“Benchmark Replacement Date” means as determined by the Designated Transaction Representative, the earliest to occur of the following events with respect to the then-current Benchmark Rate:

(i) in the case of clause (1) or (2) of the definition of “Benchmark Transition Event”, the later of (a) the date of the public statement or publication of information referenced therein and (b) the date on which the administrator of the Benchmark Rate permanently or indefinitely ceases to provide such rate;

(ii) in the case of clause (3) of the definition of “Benchmark Transition Event”, the later of (a) the date of the public statement or publication of information referenced therein and (b) the effective date set by such public statement or publication of information referenced therein; or

(iii) in the case of clause (4) of the definition of “Benchmark Transition Event”, the next Interest Determination Date following the earlier of (x) the date of such Distribution Report and (y) the posting of a notice of satisfaction of such clause (4) by the Designated Transaction Representative.